
No. 03-17-00812-CV

**IN THE COURT OF APPEALS
FOR THE THIRD DISTRICT OF TEXAS
AUSTIN, TEXAS**

FILED IN
3rd COURT OF APPEALS
AUSTIN, TEXAS
6/29/2018 5:13:09 PM
JEFFREY D. KYLE
Clerk

**AHMAD ZAATARI, MARWA ZAATARI, JENNIFER GIBSON HEBERT,
JOSEPH “MIKE” HEBERT, LINDSAY REDWINE, RAS REDWINE VI,
AND TIM KLITCH**

Plaintiffs-Appellants/Cross-Appellees,

&

STATE OF TEXAS

Intervenor-Appellant/Cross-Appellee,

v.

**CITY OF AUSTIN, TEXAS AND STEVE ADLER, MAYOR OF THE CITY
OF AUSTIN**

Defendant-Appellees/Cross-Appellants.

From the 53rd Judicial District Court, Travis County, Texas
Cause No. D-1-GN-16-002620

**CROSS-APPELLANTS CITY OF AUSTIN AND MAYOR STEVE ADLER’S
SECOND MOTION FOR EXTENSION OF TIME TO FILE REPLY BRIEF**

**Laurie Ratliff
State Bar No. 00784817
IKARD RATLIFF P.C.
2630 Exposition Blvd., Suite 118
Austin, Texas 78703
Telephone: (512) 472-6696
Telecopier: (512) 472-3669
Laurieratliff@ikardratliff.com**

ATTORNEYS FOR APPELLEES/CROSS-APPELLANTS

TO THE HONORABLE THIRD COURT OF APPEALS:

Cross-Appellants, City of Austin and Mayor Steve Adler, respectfully file their Texas Rules of Appellate Procedure 38.6(d) and 10.5(b) Second Motion for Extension of Time to File Cross-Appellants' Reply Brief.

The City of Austin cross-appellants' reply brief is currently due July 3, 2018. The City of Austin respectfully request a 20-day extension of time, making their reply brief due on July 23, 2018.

The City of Austin requests a 20-day extension of their July 3, 2018 deadline for the following reasons.

The requested extension is necessary for the City of Austin's counsel to have sufficient time to prepare cross-appellants' reply brief and to satisfy other obligations. The City of Austin hired Ms. Ratliff as lead counsel on June 28, 2018. Ms. Ratliff will need time to review the record and documents on file with the Court before preparing cross-appellants' reply brief.

Along with the preparation of cross-appellants' reply brief, Ms. Ratliff is working on a petition for writ of mandamus in the Texas Supreme Court, an amicus letter brief in the Fifth Court of Appeals, and an appellee's brief in *Anding v. City of Austin*, No. 03-18-00307-CV, in the Third Court of Appeals, which is currently due July 4, 2018, with a request to extend that deadline to August 20, 2018.

Ms. Ratliff will be speaking at an out-of-town CLE Seminar on July 18-20, 2018.

This is the City of Austin's second request for an extension of time to file their cross-appellants' reply brief. The City of Austin's requested extension is not sought for delay.

As of the filing of this motion, Intervenor, the State of Texas, is unopposed to the City of Austin's requested extension. Counsel for Appellants/Cross-Appellees had not yet responded.

For these reasons, Cross-Appellants City of Austin respectfully request that this Court grant their second motion for extension of time and set Cross-Appellants' Reply Brief deadline for July 23, 2018. The City of Austin prays for such other and further relief to which they may be entitled.

Respectfully submitted,

IKARD RATLIFF P.C.



Laurie Ratliff

State Bar No. 00784817

2630 Exposition Blvd., Suite 118

Austin, Texas 78703

Telephone: (512) 472-6696

Telecopier: (512) 472-3669

Laurieratliff@ikardratliff.com

**ATTORNEYS FOR
APPELLEES/CROSS-APPELLANTS
CITY OF AUSTIN AND MAYOR
STEVE ADLER**

CERTIFICATE OF CONFERENCE

In accordance with Rule 10.1(a)(5) of the Texas Rules of Appellate Procedure, I certify that on June 29, 2018, I conferred with counsel for Appellants/Cross-Appellees and counsel for Intervenor about the requested extension of time listed in this motion. Intervenor, the State of Texas is unopposed to this Motion. As of the filing of this motion, Appellants/cross-appellees had not yet responded to the request for a certificate of conference.



Laurie Ratliff

CERTIFICATE OF SERVICE

I hereby certify that true and correct copies of *Cross-Appellants City of Austin and Mayor Steve Adler's Second Motion for Extension of Time to File Reply Brief* was served on Appellants/Cross-Appellees as indicated below in accordance with the Texas Rules of Appellate Procedure 9.5(e) on this 29th day of June, 2018 via e-service:

Counsel for Plaintiffs-Appellants/Cross-Appellees Ahmad Zaatari, Marwa Zaatari, Jennifer Gibson Hebert, Joseph "Mike" Hebert, Lindsay Redwine, Ras Redwine Vi, and Tim Klitch:

Robert Henneke

Chance Weldon

TEXAS PUBLIC POLICY FOUNDATION

901 Congress Avenue

Austin, Texas 78701

Counsel for Intervenors-Appellant/Cross-Appellee State of Texas:

Andrew B. Davis

OFFICE OF THE ATTORNEY GENERAL

P.O. Box 12548 (MC 059)

Austin, Texas 78711-2548



Laurie Ratliff